

25NNCV03519 25NNCV03519

County: los-angeles

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Case Number: 25NNCV03519 Hearing Date: July 28, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

MEA KIEN CHU, an individual,

Plaintiff,

vs.

GF SUPERMARKET OF MP, INC., a

California Corporation aka HONG KONG SUPERMARKET; GOLDEN VALLEY PALACE LLC, a

California Limited Liability Company; and DOES 1 to 20, Inclusive,

Defendants.

Case

No.:

25NNCV03519

Hearing

Date:

July

28, 2026

Time:

8:30 a.m.

[Tentative]

Order RE: MOTION OF PLAINTIFF TO GRANT TRIAL PREFERENCE

MOVING PARTY: Plaintiff Mea Kien Chu

RESPONDING PARTIES:

Defendants GF Supermarket of MP, Inc.
and Golden Valley Place, LLC

The Court

considered the moving papers, opposition and reply filed in connection with the instant motion.

BACKGROUND

On

May 22, 2025, Plaintiff Mea Kien Chu ("Plaintiff") filed this action against Defendants GF Supermarket of MP, Inc. ("GF") and Golden Valley Place, LLC ("Golden Valley") (collectively, "Defendants"), alleging causes of action for general negligence and premises liability. Plaintiff alleges that while shopping at Defendants' supermarket she tripped and fell over a box in a grocery aisle.

On

July 28, 2025, GF filed a cross-complaint against Roes 1 to 100 for (1) equitable indemnity, (2) comparative indemnity, (3) contribution, and (4) declaratory relief.

On

June 25, 2026, Plaintiff filed the instant motion for trial preference.

On

July 7, 2026, Defendant filed an opposition and Plaintiff filed a reply.

LEGAL STANDARD

Code of Civil Procedure section 36, subdivision

(a), provides, in pertinent part, that “[a] party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) [t]he party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” “[S]ubdivision (a) of section 36 is mandatory and absolute in its application in civil cases whenever the litigants are [over] 70 years old.” (*Swaithes v. Superior Court*, (1989) 212 Cal.App.3d 1082, 1086.)

“Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party’s attorney, or upon a showing of good cause stated in the record. Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party.” (Code Civ. Proc., § 36, subd. (f).)

DISCUSSION

Plaintiff

brings this motion on the grounds that treatments for her active cancer and injured shoulder render her entitled to preferential trial setting.

Plaintiff

is 74 years old. (Farias Decl., ¶ 2.) On June 2, 2023, Plaintiff tripped and fell over a cardboard box at Defendant’s supermarket. (Farias Decl., ¶ 3.) Plaintiff sustained injuries including a complete tear of the right rotator cuff and underwent reparative surgeries. (Farias Decl., ¶ 4.) Plaintiff was diagnosed with breast cancer in November 2022 and underwent a left total mastectomy and sentinel lymph node biopsy on December 14, 2022. (Farias Decl., ¶ 7.) Subsequently, Plaintiff began treatment including chemotherapy and targeted antibody therapy. (Farias Decl., ¶ 7.) Plaintiff has been monitored for lung nodules and elevated carcinoembryonic antigen levels, requiring continued monitoring and follow-ups for possible disease progression. (Farias Decl., ¶ 8.) Additionally, Plaintiff faces a second procedure for her shoulder while simultaneously undergoing cancer treatment and follow-up care. (Farias Decl., ¶

8.)

In

opposition, Defendant argues Plaintiff fails to provide medical records or a physician's testimony addressing her diagnoses and why delay in trial threatens Plaintiff's ability to participate. (Opp., 5:1-8.) Defendant contends the only medical content presented comes from Plaintiff's counsel, not a medical professional. (Opp., 5:12-14.) Defendant further argues Plaintiff's own delay in the trial proceedings undercuts her need for a trial preference. (Opp., 5:15.) Defendant notes that Plaintiff filed her complaint three years after her cancer diagnosis. (Opp., 5:16-19.) Defendant argues Plaintiff repeatedly delayed discovery, failed to provide deposition availability, and requested multiple extensions to serve discovery responses, inconsistent with any claimed urgency for a 120-day trial setting. (Opp., 5:20-28, 6:1-6.)

In

reply, Plaintiff argues that a physician's declaration or medical records are not necessary and Plaintiff's counsel previously shared Plaintiff's medical records and billing documents with Defendant. (Reply, 2:19-28, 3:1-19.) Plaintiff further argues her delay in discovery responses and providing deposition availability, as well as her request for extensions, is irrelevant and false. (Reply, 3:24-28, 4:1-4.)

The

Court finds that Plaintiff fails to provide evidence that her health is actively worsening in a manner that would prejudice her interest in this litigation. Plaintiff is over 70 years old and undergoing treatment for multiple ailments, but Plaintiff fails to present evidence that her health is declining in a manner that risks her being unable to see this litigation through to its conclusion. Code of Civil Procedure section 36 is only mandatory upon finding that the "preference is necessary to prevent prejudicing the party's interest in the litigation." (Code Civ. Proc., § 36, subd. (a); Swaithes, supra, 212 Cal.App.3d at p. 1086.) Plaintiff's detailed description of litigation efforts in her reply demonstrates that she has been able to meaningfully participate in discovery and mediation preparation thus far. (See Reply, 4:8-28, 5:1-23, 6:4-9.)

Accordingly,

the Court DENIES Plaintiff's motion for trial preference.

CONCLUSION

Based on the foregoing, the Court DENIES Plaintiff Mea Kien Chu's motion for trial preference.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 28, 2026

Sarah
J. Heidel

Judge
of the Superior Court